

words in the articles to give it to the heirs of the body living at the death of the surviving parent, as "if the parent die without *leaving* heirs of the body" (*f*).

10. **Articles to settle chattels on same trusts as real estate.** — Again, if in *marriage articles*, a party covenant to settle *personal estate* upon the trusts, and for the intents and purposes, upon and for which the freeholds are settled, the Court will not apply the limitations to the personal estate literally, the effect of which would be to vest the absolute interest in remainder in the first son on his birth, but will insert a proviso that will have the effect, at least to a certain extent, of making the personal estate follow the course of the real.

Limitations over on dying under 21, or under 21 without issue. — Sir Joseph Jekyll said, the practice of conveyancers was to insert a limitation over on "dying under 21" (*g*): but Lord Hardwicke conceived the common limitation over to be on "dying under 21 without issue" (*h*). In *The Duke of Newcastle v. The Countess of Lincoln* (*i*), the chattels were articulated to be settled to the same uses as the realty, viz. to A. for life, remainder to A.'s first and other sons in tail male, remainder to B. for life, remainder to B.'s first and other sons in tail male, remainders over. A. died, having had a son who lived only nine months. Lord Loughborough held that the leaseholds had not vested absolutely in the deceased son of A., and ordered a proviso to be inserted in the settlement, that they should not vest absolutely in any son of B. who should not attain 21 or *die under that age leaving* [*116] *issue male*. From this decision an *appeal was carried to the House of Lords (*a*); but, before the cause could be heard, a son of B. having attained 21, the decree was, that the son of B. had become absolutely entitled. Thus the House of Lords decided that the absolute interest had not vested in the first tenant in tail on his birth; but what proviso ought to have been inserted, whether a limitation over "on dying under 21," or "on dying under 21 without issue male," the House in the event was not called

(*f*) *Read v. Snell*, 2 Atk. 642.

(*g*) *Stanley v. Leigh*, 2 P. W. 690.

(*h*) *Gower v. Grosvenor*, Barn. 63;

S. C. 5 Mad. 348.

(*i*) 3 Ves. 387, see the observations

pp. 394, 397; and see *Scarsdale v.*

Curzon, 1 J. & H. 51, 54.

(*a*) 12 Ves. 218.